

**11. CARLEY VS. CEBRON
GROUP, LLC
2024-01405281**

MOTION FOR ATTORNEY FEES

Plaintiff Anne Carley's Motion for Attorney Fees is GRANTED in the amount of \$43,847.36.

Plaintiff prevailed at bench trial in December 2025 after Defendants failed to appear.

Legal Standard:

A party seeking a fee award has the burden of establishing entitlement to an award, and of documenting the appropriate hours spent, and the hourly rates. (*569 E. County Blvd. LLC v Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 432; *Lunada Biomedical v Nunez* (2014) 230 Cal.App.4th 459, 486.) In challenging an attorney fees request, the burden falls upon the challenging party to point to specific items challenged, with arguments and citation to evidence. General claims that fees are excessive are insufficient. (*Premier Medical Management Systems, Inc. v. California Insurance Guarantee Association* (2008) 163 Cal.App.4th 550, 564.) A party cannot litigate tenaciously and then complain about the time incurred. (*Peak-Las Positas Partners v. Bollag* (2009) 172 Cal.App.4th 101, 114.)

In challenges to the reasonableness of the number of hours billed, "it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence." (*Premier Med. Mgmt. Sys., Inc. v. Cal.Ins. Guarantee Ass'n* (2008) 163 Cal.App.4th 550, 564.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Id.*)

Application:

Plaintiff's counsel declares that this case was especially risky because Defendants previously entered a settlement agreement, which was breached, and she believes it will be difficult to collect on Plaintiff's judgment. Counsel has been practicing law since 1997, specializing in employment law since 2011. Her actual hourly rate is \$950/hour and that of her paralegal is \$150/hour.

Bronshiteyn v. Department of Consumer Affairs (2025) 114 Cal.App.5th 537, 546–547, holds, "Trial judges see an endless procession of lawyers and lawyer fee motions. After years of experience, trial judges can develop an empirical sense of the prevailing market conditions and the range of individual performances. Some talented and hardworking lawyers can do brilliant work from the very outset of their careers. Other lawyers are vastly experienced but unremarkable. Some attorneys are miserable. The seasoned trial judge is the eyewitness to this parade." In *Bronshiteyn*, the trial court's award of fees based on counsel's hourly rates between \$425-\$1,200, which were at the "upper end of

		Los Angeles market rates,” was upheld based on its finding that, “[t]he quality of lawyering was high; far beyond what the court would expect of an average lawyer—even with the years of experience the lawyers here exhibited.” (<i>Id.</i> at 547.) Here, the Court finds Plaintiff’s counsel exercised skill and diligence in prosecuting this case through trial. Defendants did not appear or oppose the present motion. Counsel is highly experienced in employment law, worked on this case efficiently, and reasonably delegated many tasks to her paralegal. Therefore, the Court will accept counsel’s hourly rate of \$950 and paralegal rate of \$150. Counsel has submitted detailed billing records demonstrating she spent 27.75 hours and her paralegal spent 10.5 hours litigating this matter to trial, plus an additional 6.5 and 3 hours respectively on the present motion, for total incurred fees of \$34,562.00. Counsel also seeks a 1.5x multiplier based on the contingent risk and public interest in this case. Based on the factors set out in <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1132, including the contingent risk and public policy served by bringing this lawsuit to enforce unpaid wages, the Court finds a 1.25x multiplier is reasonable. Therefore, the motion is granted in the total amount of \$43,847.36. (\$34,562 x 1.25 multiplier = \$43,202.50, plus costs of \$644.86.)
12.	CAO VS. GENERAL MOTORS, LLC 2024-01409133	MOTION FOR SUMMARY JUDGMENT Defendant General Motors LLC moves for summary judgment as to plaintiff Derick Cao’s Complaint is DENIED. “[S]ummary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Civil Proc. Code, § 437c, subd. (c).) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . .” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850 (<i>Aguilar</i>).) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies the initial burden by submitting undisputed evidence “showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Civil Proc. Code § 437c, subd. (p)(2); <i>Aguilar, supra</i>, 25 Cal.4th at pp. 850-51.) However, “[t]he defendant must indeed present evidence.” (<i>Aguilar, supra</i>, 25 Cal.4th at p. 855, italics in original.) If the moving party meets its burden, the burden then shifts to the party opposing